

25CHCV03337 25CHCV03337

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Case Number: 25CHCV03337 Hearing Date: June 30, 2026 Dept: F43

Dept. F43

Hearing Date: 06-29-26

Case # 25CHCV03337, Washington Capital Global Finance, Inc. v. Voskericyan, et al.

Trial Date: None set.

MOTION FOR A PROTECTIVE ORDER

MOVING PARTY: Defendant Levon Voskericyan, in pro per

RESPONDING PARTY: Plaintiff Washington Capital Global Finance, Inc.

RELIEF REQUESTED

Order granting defendant Levon Voskericyan a protective order pursuant to Code of Civil Procedure section 2025.420, staying plaintiff's deposition noticed for May 19, 2026.

RULING: Motion is denied. The court awards Plaintiff \$2,975 in monetary sanctions.

SUMMARY OF ACTION

On September 17, 2025, plaintiff Washington Capital Global Finance, Inc. (Plaintiff) filed a complaint against several defendants, including defendant Levon Voskericyan. Plaintiff alleges contractual fraud and that defendants failed to repay funds loaned under a promissory note. Defendant Levon Voskericyan filed an answer on November 12, 2025 and an amended answer on March 26, 2026. Defendant Levon Voskericyan is self-represented. Plaintiff has since dismissed several defendants and three causes of action without prejudice.

On March 25, 2026, Plaintiff filed a Substitution of Attorney form naming Armen Manasserian and Manasserian Law, APC as new counsel.

On April 18, 2026, Plaintiff electronically served defendant Levon Voskericyan (Defendant) with a notice of taking his deposition on May 19, 2026, at 9:00 a.m. (Declaration of Levon Voskericyan ¶ 6.)

The next day, Defendant served Plaintiff with his first sets of form interrogatories and special interrogatories, with responses being due May 19, 2026, the same day as Defendant's noticed deposition. (Voskericyan Decl. ¶ 8.) Defendant claims he could not prepare for the deposition if Plaintiff's answers were outstanding. (Id.)

On April 21, 2026, defendant Levon Voskericyan filed the instant motion for a protective order in order to stay the pending deposition noticed for May 19, 2026. Plaintiff filed an opposition on June 16, 2026, and Defendant replied on June 22, 2026.

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SUMMARY OF ARGUMENTS

Defendant first contends the deposition is premature because the court has yet to hold a Case Management Conference and schedule discovery pursuant to California Rules of Court, rules 3.722 and 3.724. Next, Defendant claims the deposition as scheduled is unfair and oppressive because Plaintiff's sworn responses to Defendant's discovery were due the same day as the noticed deposition and would not give Plaintiff an opportunity to prepare for his deposition. Defendant also attacks the underlying promissory note in this matter as void for usurious rates and oppressive, claims Plaintiff failed to conduct a meaningful meet and confer, and claims the deposition notice is facially defective because it lists defendants who have been dismissed.

In opposition, Plaintiff contends the court should deny the motion. According to Plaintiff, Defendant did not conduct or attempt to conduct a pre-motion "meet and confer." Defendant has failed to carry his burden of proving "good cause," the inclusion of dismissed defendants in the complaint caption has no bearing on the deposition, and Defendant's memorandum of points and authorities violates California Rule of Court, rule 2.108(4). Plaintiff also asks the court to impose \$4,675 in monetary sanctions against Defendant for failing to meet and confer and for unsuccessfully making a motion for a protective order.

MEET AND CONFER

A motion for protective order as to a deposition must be accompanied by a "meet and confer" declaration with "facts showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion." (Code Civ. Proc. § 2025.420, subd. (a), 2016.040.) In Department 43, "meet and confer" means in person or via phone, not by letter or email. (Department F43 Courtroom Information, at p. 2.)

The "meet and confer" requirement is not met. In his reply declaration, Defendant states he served a written objection on May 14, 2026, expressing his willingness to meet and confer about the deposition. (Supplemental Declaration of Levon Voskericyan ¶ 5.) However, Defendant fails to demonstrate he made any "good faith" efforts to directly meet and confer with plaintiff's counsel before filing his motion. Defendant claims a telephonic meet and confer occurred on June 16, 2026, but this occurred almost two months after Defendant filed his motion.

ANALYSIS

A. Protective Orders for Depositions

"Before, during, or after a deposition, any party, any deponent, or any other affected natural person or organization may promptly move for a protective order. The motion shall be accompanied by a meet and confer declaration under Section 2016.040." (Code Civ. Proc., § 2025.420, subd. (a).) "The court, for good cause shown, may make any order that justice requires to protect any party, deponent, or other natural person or organization from unwarranted annoyance, embarrassment, or oppression, or undue burden and expense." (Code Civ. Proc., § 2025.420, subd. (b).)

As mentioned above, Defendant has failed to satisfy the "meet and confer" requirement because the moving papers do not indicate Defendant made any attempts to meet with Plaintiff's counsel concerning issues with the Notice of Deposition prior to filing the instant motion. As the moving party, Defendant was responsible for initiating and attempting "meet and confer" efforts. (*Nativi v. Deutsche Bank Nat'l Trust Co.* (2014) 223 Cal.App.4th 261, 316, fn. 19.)

Moreover, Defendant fails to show "good cause" for a protective order because his arguments do not rise to the level of "unwarranted annoyance, embarrassment, oppression, or undue burden and expense."

First, the California Rules of Court do not mandate that discovery is barred until the court sets a discovery schedule during the Case Management Conference. The Rules state that the parties must address at the conference whether discovery has been completed, by which date discovery will be completed, and what discovery issues are anticipated. (Cal. Rules of Court, rule 3.727(8)-(9).) The parties are also required to "meet and confer" no later than 30 days before the date set for the initial case management conference to consider "[r]esolving any discovery disputes and setting a discovery schedule." (Cal. Rules of Court, rule 3.724(1).) Finally, "[t]he plaintiff may serve a deposition notice without leave of court on any date that is 20 days after the service of the summons on, or appearance by, any defendant." (Code Civ. Proc., § 2025.210.) Defendant cites no legal authority stating discovery is stayed pending the court setting a discovery schedule during the case management conference. Furthermore, the deposition notice was timely served almost five months after Defendant appeared in this matter. Defendant made a general appearance in this matter on November 12, 2025, when he filed an answer. Thus, Defendant's case management conference argument fails.

Although Defendant claims the deposition date did not allow him sufficient time to review Plaintiff's discovery responses in preparation for his deposition, Defendant was free to serve his form interrogatories and special interrogatories immediately after filing and serving his answer. (Code Civ. Proc., § 2030.20, subd. (a) ["A defendant may propound interrogatories to a party to the action without leave of court at any time."].) Instead, Defendant chose to serve the interrogatories the day after Plaintiff served the notice of deposition which aligned the interrogatory response deadline to the day of the deposition. Considering the deposition sought Defendant's knowledge about specific topics rather than Defendant's knowledge based on Plaintiff's discovery responses, it is unclear why Defendant needed Plaintiff's responses in order to prepare for the deposition. (See Declaration of Brent A. Kramer, Exhs. 1, 2.)

Next, Defendant's attacks on the promissory note underlying this action do not support a showing of "good cause." Although Defendant insists the contract is void as a matter of law because it was made to finance a Schedule I controlled substance (21 U.S.C. § 812) and the interest is usurious, Defendant fails to state how testifying from his personal knowledge about the formation, terms, performance, or breach the contract is oppressive. If Defendant believes the contract is illegal and void, Defendant can testify to this at his deposition.

Furthermore, the inclusion of dismissed defendants in the case caption of the notice does not sufficient to render a deposition notice oppressive or harassing. At most, this rises to the level of a clerical error that has no bearing on Defendant's ability to attend and testify at the deposition about matters within his personal knowledge.[1]

Therefore, Defendant has failed to show "good cause" for the protective order.

Because defendant Levon Voskericyan has failed to satisfy the "meet and confer" requirement or show "good cause," the court denies his motion for a protective order.

B. Sanctions

In its opposition, Plaintiff asks the court to impose \$4,675 in monetary sanctions against Defendant for failing to comply with the “meet and confer” requirement and for unsuccessfully making a motion for a protective order. (Kramer Decl. ¶¶ 9-10.)

The court must impose a monetary sanction against “any party, person, or attorney who unsuccessfully makes or opposes a motion for a protective order, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2025.420, subd. (h).)

Plaintiff is entitled to sanctions because the court has denied Defendant’s motion and Defendant failed to satisfy the “meet and confer” requirement in Section 2025.420.

Defendant claims he has established substantial justification for not imposing sanctions: the underlying contract is void, Plaintiff has failed to establish standing in this matter, the deposition was noticed oppressively (before Plaintiff served interrogatory responses), and the notice omitted defendant Argentina Vasquez’s name. (Reply at pp. 3:7-4:7.) As stated above, Defendant has not established “good cause” for the protective order, has not shown a pre-motion “meet and confer” attempt, and argues issues which protective orders do not address—whether the underlying promissory note is void. As for the omission of defendant Vasquez’s name and the inclusion of the dismissed defendant’s names, it is unclear how these clerical errors substantially justify Defendant’s failure to comply with the “meet and confer” requirement or to show “good cause.” Finally, Defendant cannot rely on his status as a self-represented per litigant to avoid the statutory requirements for a protective order because self-represented parties are held to the same standard as attorneys. (Nuño v. California State University, Bakersfield (2020) 47 Cal.App.5th 799, 811, citation omitted [“[A] self-represented litigant who is not indigent ‘must expect and receive the same treatment as if represented by an attorney—no different, no better, no worse.’”].) Therefore, Defendant fails to show substantial justification for failing to comply with the “meet and confer” and “good cause” requirements.

Plaintiff’s counsel, Brent A. Kramer, charges \$425 per hour. (Kramer Decl. ¶ 9.) Kramer claims he spent 4.0 hours on the motion and anticipates spending 4.0 hours on the reply and 3.0 hours for the hearing. (Id. ¶ 10.)

The court finds the hourly rate is reasonable but reduces the time requested because the time spent reviewing the reply appears excessive and the hearing will last no more than 1.0 hour.

Therefore, the court grants Plaintiff sanctions in the reduced amount of \$2,975: (1) 4.0 hours reviewing the motion and preparing the opposition; (2) 1.5 hours reviewing the reply; and (3) 1.5 hours to preparing for and attending the hearing.

CONCLUSION and ORDER

Defendant Levon Voskericyan’s motion for a protective order is denied.

The court grants Plaintiff monetary sanctions in the reduced amount of \$2,975. Defendant Levon Voskericyan is ordered to pay Plaintiff’s counsel within 30 days of this order.

Defendant Levon Voskericyan to give notice.

[1] The court notes that the deposition date (May 19, 2026) has passed and neither party presents evidence that the deposition has been re-noticed.